The Supreme Court of South Carolina

Re: Amendments to Rules 413 and 502, South Carolina Appellate Court Rules

Appellate Case No. 2024-000803

ORDER

The South Carolina Bar has proposed several amendments to the Rules for Lawyer Disciplinary Enforcement (RLDE), which are found in Rule 413 of the South Carolina Appellate Court Rules (SCACR), and the Rules for Judicial Disciplinary Enforcement (RJDE), which are found in Rule 502 of the SCACR.

We adopt modified versions of three of the Bar's proposed amendments. These amendments: (1) permit lawyers and judges to request investigative panel review of cases that have been pending for 450 days or longer; (2) provide that disciplinary counsel may issue a letter of caution with the consent of the lawyer or judge; and (3) provide that disciplinary counsel must file formal charges within 90 days of authorization by an investigative panel. The remainder of the Bar's requested amendments are denied.

These amendments, which are set forth in the attachment to this Order, are effective immediately; however, lawyers and judges may not submit requests for investigate panel review until January 2, 2027.

s/ John W. Kittredge C.J.

s/ John Cannon Few J.

s/ George C. James, Jr. J.

s/ D. Garrison Hill J.

s/ Letitia H. Verdin J.

Columbia, South Carolina
April 8, 2026

Rule 2(s), RLDE, Rule 413, SCACR is amended to provide:

> **(s) Letter of Caution:** a written caution or warning about past or future conduct issued when it is determined that no misconduct has been committed or that only minor misconduct not warranting the imposition of a sanction has been committed. A letter of caution may be issued by disciplinary counsel with the consent of the lawyer, by an investigative panel, or by the Supreme Court. The issuance of a letter of caution is not a sanction under these rules and does not constitute a finding of misconduct. The fact that a letter of caution has been issued shall not be considered in a subsequent disciplinary proceeding against the lawyer unless the caution or warning contained in the letter of caution is relevant to the misconduct alleged in the proceedings.

Rule 19(d)(2), RLDE, Rule 413, SCACR is amended to provide:

> **(d) Disposition After Investigation.**
>
> . . .
>
> **(2)** If disciplinary counsel determines no misconduct or only minor misconduct has been committed, and a written caution or warning is appropriate to conclude the matter, disciplinary counsel may issue a letter of caution with the consent of the lawyer.

Rule 19(d)(4)(B), RLDE, Rule 413, SCACR, is amended to provide:

> **(B)** If the investigative panel finds that there is reasonable cause to believe the lawyer committed misconduct for which the imposition of a sanction is warranted, it may accept an agreement for discipline by consent pursuant to Rule 21; it may execute a deferred discipline agreement; it may admonish the lawyer pursuant to the provisions of Rule 19(d)(5) or, it may direct disciplinary counsel to file formal charges. If disciplinary counsel fails to file formal charges with the Commission within 90 days of an investigative panel directive, the directive shall expire. If a directive expires, the Commission shall notify the Supreme Court in writing, and disciplinary counsel may seek a renewed directive from the investigative panel for the filing of formal charges only upon a showing of compelling circumstances.

Rule 19, RLDE, Rule 413, SCACR, is amended to add the following new paragraph:

(g) Right to Preliminary Review of Investigation. Unless an investigation is stayed by order of the Commission or the Supreme Court, if disciplinary counsel has not taken action pursuant to Rule 19(d) within 450 days of the date of the first complaint filed in a matter, the lawyer may request the investigative panel conduct a preliminary review of the status of the investigation by submitting a written request to the Commission and serving a copy on disciplinary counsel.

(1) Any request shall include the following information:

(A) the name of the lawyer;

(B) the Matter Number(s) assigned by disciplinary counsel (i.e. 26-DE-L-0XXXX); and

(C) the date of the first complaint.

The lawyer may not submit motions, memoranda, affidavits, exhibits, or additional argument unless requested by the Commission.

(2) Within 30 days of service of the request for review, disciplinary counsel shall either report to the Commission what action has been taken pursuant to Rule 19(d) or submit the following to the Commission:

(A) copies of the complaint(s), the notice(s) of investigation and the lawyer's response(s);

(B) a summary of the allegations, a summary of the investigation and disciplinary counsel's recommendation, along with an explanation of the reason(s) for the delay in taking action pursuant to Rule 19(d); and

(C) any other relevant information, including any mitigating or aggravating factors.

(3) The Commission shall promptly schedule a review of the matter(s) for consideration by an investigative panel.

(4) Neither disciplinary counsel nor the Commission is required to provide the lawyer with copies of any of the materials submitted to the investigative panel, and the lawyer is not permitted to respond to any submission or otherwise address the investigative panel. However, the investigative panel may direct that disciplinary counsel or the lawyer provide additional information. Upon completion of its preliminary review, the investigative panel may issue a scheduling order or take other action it deems appropriate within the scope of its authority under these rules.

(5) If a matter is remanded to disciplinary counsel for further investigation, the lawyer may not renew the request for preliminary review any earlier than 180 days from receipt of notice of the Commission's action, unless otherwise directed by the Commission.

(6) The Commission may adopt its own rules of procedure for requests for preliminary review, subject to approval of the Supreme Court.

(7) A request for preliminary review may be filed on or after January 2, 2027.

Rule 2(q), RJDE, Rule 502, SCACR is amended to provide:

> **(q) Letter of Caution:** a written caution or warning about past or future conduct issued when it is determined that no misconduct has been committed or that only minor misconduct not warranting the imposition of a sanction has been committed. A letter of caution may be issued by disciplinary counsel with the consent of the judge, an investigative panel, or by the Supreme Court. The issuance of a letter of caution is not a sanction under these rules and does not constitute a finding of misconduct. The fact that a letter of caution has been issued shall not be considered in a subsequent disciplinary proceeding against the judge unless the caution or warning contained in the letter of caution is relevant to the misconduct alleged in the proceedings.

Rule 19(d)(2), RJDE, Rule 502, SCACR is amended to provide:

> **(d) Disposition After Investigation.**
>
> . . .
>
> **(2)** If disciplinary counsel determines no misconduct or only minor misconduct has been committed, and a written caution or warning is appropriate to conclude the matter, disciplinary counsel may issue a letter of caution with the consent of the judge.

Rule 19(d)(4)(B), RJDE, Rule 502, SCACR, is amended to provide:

> **(B)** If the investigative panel finds that there is reasonable cause to believe the judge committed misconduct for which the imposition of a sanction is warranted, it may accept an agreement for discipline by consent pursuant to Rule 21; it may execute a deferred discipline agreement; it may admonish the judge pursuant to the provisions of Rule 19(d)(5) or, it may direct disciplinary counsel to file formal charges. If disciplinary counsel fails to file formal charges with the Commission within 90 days of an investigative panel directive, the directive shall expire. If a directive expires, the Commission shall notify the Supreme Court in writing, and disciplinary counsel may seek a renewed directive from the investigative panel for the filing of formal charges only upon a showing of compelling circumstances.

Rule 19, RJDE, Rule 502, SCACR, is amended to add the following new paragraph:

(f) Right to Preliminary Review of Investigation. Unless an investigation is stayed by order of the Commission or the Supreme Court, if disciplinary counsel has not taken action pursuant to Rule 19(d) within 450 days of the date of the first complaint filed in a matter, the judge may request the investigative panel conduct a preliminary review of the status of the investigation by submitting a written request to the Commission and serving a copy on disciplinary counsel.

(1) Any request shall include the following information:

(A) the name of the judge;

(B) the Matter Number(s) assigned by disciplinary counsel (i.e. 26-DE-L-0XXXX); and

(C) the date of the first complaint.

The judge may not submit motions, memoranda, affidavits, exhibits, or additional argument unless requested by the Commission.

(2) Within 30 days of service of the request for review, disciplinary counsel shall either report to the Commission what action has been taken pursuant to Rule 19(d) or submit the following to the Commission:

(A) copies of the complaint(s), the notice(s) of investigation and the judge's response(s);

(B) a summary of the allegations, a summary of the investigation and disciplinary counsel's recommendation, along with an explanation of the reason(s) for the delay in taking action pursuant to Rule 19(d); and

(C) any other relevant information, including any mitigating or aggravating factors.

(3) The Commission shall promptly schedule a review of the matter(s) for consideration by an investigative panel.

(4) Neither disciplinary counsel nor the Commission is required to provide the judge with copies of any of the materials submitted to the investigative panel, and the judge is not permitted to respond to any submission or otherwise address the investigative panel. However, the investigative panel may direct that disciplinary counsel or the judge provide additional information. Upon completion of its preliminary review, the investigative panel may issue a scheduling order or take other action it deems appropriate within the scope of its authority under these rules.

(5) If a matter is remanded to disciplinary counsel for further investigation, the judge may not renew the request for preliminary review any earlier than 180 days from receipt of notice of the Commission's action, unless otherwise directed by the Commission.

(6) The Commission may adopt its own rules of procedure for requests for preliminary review, subject to approval of the Supreme Court.

(7) A request for preliminary review may be filed on or after January 2, 2027.